

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SHAMARIE WALTERS,

Plaintiff,

-against-

SUMMONSPOLICE OFFICER DONALD HARRIS, Shield No.
18438, POLICE OFFICER GLORIA CEVALLOS, Tax
No. 958390, and SERGEANT ROBERT DURST, Tax No.
946684,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Bronx
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 20, 2019

Yours, etc.

/s/JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690TO: POLICE OFFICER DONALD HARRIS, Shield No. 18438, 47th Precinct, 4111 Laconia
Ave, Bronx, NY 10466
POLICE OFFICER GLORIA CEVALLOS, Tax No. 958390, 47th Precinct, 4111
Laconia Ave, Bronx, NY 10466
SERGEANT ROBERT DURST, Tax No. 946684, 47th Precinct, 4111 Laconia Ave,
Bronx, NY 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

SHAMARIE WALTERS,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER DONALD HARRIS, Shield No.
18438, POLICE OFFICER GLORIA CEVALLOS, Tax
No. 958390, and SERGEANT ROBERT DURST, Tax No.
946684

JURY TRIAL DEMANDED

Defendants.

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Plaintiff SHAMARIE WALTERS, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On August 24, 2016, at approximately 4:30 p.m., plaintiff Shamarie Walters, while lawfully present in the vicinity of 241st Street and White Plains Road, Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was subsequently denied the right to due process and a fair trial. All criminal charges brought against plaintiff were dismissed and sealed on or about February 24, 2017. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, and denied plaintiff the right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff SHAMARIE WALTERS is a resident of the state of New York.

3. POLICE OFFICER DONALD HARRIS, Shield No. 18438, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER DONALD HARRIS, Shield No. 18438, is and was at all times relevant herein, assigned to the 47th Precinct.

5. POLICE OFFICER DONALD HARRIS, Shield No. 18438, is being sued in his individual and official capacity.

6. POLICE OFFICER GLORIA CEVALLOS, Tax No. 958390, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER GLORIA CEVALLOS, Tax No. 958390, is and was at all times relevant herein, assigned to the 47th Precinct.

8. POLICE OFFICER GLORIA CEVALLOS, Tax No. 958390, is being sued in her individual and official capacity.

9. SERGEANT ROBERT DURST, Tax No. 946684 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT ROBERT DURST, Tax No. 946684 is and was at all times relevant herein, assigned to the 47th Precinct.

11. SERGEANT ROBERT DURST, Tax No. 946684 is being sued in his individual and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On August 24, 2016, at approximately 4:30 p.m., plaintiff was lawfully present inside of a motor vehicle in the vicinity of 241st Street and White Plains Road, Bronx, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or any legal justification.

17. At no point in time did plaintiff violate any Vehicle Traffic Law or any law whatsoever.

18. Nevertheless, the defendant police officers unlawfully pulled over plaintiff's motor vehicle and detained plaintiff without reasonable suspicion or probable cause.

19. The defendant police officers requested that plaintiff provide them with his driver's license and registration for the motor vehicle.

20. Plaintiff complied with the defendant police officers requests and provided them with his valid driver's license and registration.

21. At no point in time did plaintiff commit any crime whatsoever, nor did the defendant police officers have legal justification or probable cause to believe plaintiff committed any crime.

22. The officers did not recover any illegal drugs, weapons or contraband from plaintiff or from his possession, custody, or control.

23. Nevertheless, plaintiff was unlawfully handcuffed and arrested without legal justification or probable cause.

24. At no point in time did plaintiff resist arrest in any way.

25. Plaintiff was transported by the defendant police officers to the 47th Precinct against his will, where he was photographed, fingerprinted and then placed in a holding cell by the defendants.

26. At approximately 10:00 p.m. after approximately 6 hours in custody, plaintiff was transported to Bronx County Central Booking and placed in a holding cell.

27. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information which allegedly led them to believe that plaintiff committed a crime.

28. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that plaintiff was in possession of marijuana.

29. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

30. On August 25, 2016, after approximately 24 hours in custody, plaintiff was arraigned in Bronx County Criminal Court, charged with crimes he did not commit and was released on his own recognizance.

31. The officers unlawfully charged plaintiff with Resisting Arrest and Unlawful Possession of Marijuana.

32. Thereafter, all charges were dismissed and sealed in their entirety on February 24, 2017.

33. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, and denial of due process and the right to a fair trial against plaintiff.

34. The unlawful search, false arrest, and false imprisonment, and denial of a right to fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

37. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

40. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

43. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

46. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

53. Defendants lacked probable cause to search plaintiff and the vehicle.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION.

Denial of Right to Fair Trial/Due Process

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein

59. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

60. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

61. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

62. In withholding/creating false evidence against plaintiff Shamarie Walters, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

63. As a result of the foregoing, plaintiff Shamarie Walters, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

69. Defendants failed to intervene to prevent the unlawful conduct described herein.

70. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

75. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Shamarie Walters demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 20, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
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TO: POLICE OFFICER DONALD HARRIS, Shield No. 18438, 47th Precinct, 4111 Laconia Ave, Bronx, NY 10466
POLICE OFFICER GLORIA CEVALLOS, Tax No. 958390, 47th Precinct, 4111 Laconia Ave, Bronx, NY 10466
SERGEANT ROBERT DURST, Tax No. 946684, 47th Precinct, 4111 Laconia Ave, Bronx, NY 10466

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 20, 2019

_____/s/
STUART E. JACOBS